

**TENTATIVE RULINGS**  
**Judge Lindsey E. Martínez, Dept. C24**

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

**Hearing Date: August 10, 2026 at 1:30 pm**

Rulings Posted: 8/7/26 at 12:00 pm

| #   | Case Name                      | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
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| 303 | <i>Farahmand vs. Farahmand</i> | <p>Before the Court at present is the unopposed Motion To Set Aside Default, filed by Defendant Bahman Farahmand (Defendant) on 4/24/26.</p> <p>The Motion demonstrates that the default entered against Defendant in <i>Farahmand v. Farahmand</i>, Case No. 2025-01502605, was the result of a mistake. (Esmailpour Decl., ¶¶ 2-7.) Relief is thus permitted under C.C.P. § 473(b), as the Motion was filed within six months after the default was entered on 11/10/26. The Motion includes Defendant’s proposed Answer, and is unopposed. The Motion is therefore <b>GRANTED</b>.</p> |

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|     |                                          | <p>The court vacates the 8/10/26 OSC and sets a status conference for 8/24/26 at 8:45am in Dept. C24. Defendant shall file his proposed Answer within 5 court days, and shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| 305 | <i>Owens vs. Jones Covey Group, Inc.</i> | <p>Plaintiff Paula Owens' motion to tax costs is DENIED in part, and GRANTED, in part. Defendants Jones Covey Group, Inc. and Alberto Muniz's costs shall be reduced by \$23,013.79 and awarded the total amount of \$134,895.70.</p> <p><u>Entitlement to Costs.</u> Plaintiff failed to obtain a more favorable judgment than Defendants' valid and enforceable offer to compromise pursuant to Code of Civil Procedure section 998, and thus Defendants are entitled to all postoffer costs including reasonable expert witness fees. (See Code of Civ. Proc. § 998, subd. (c)(1); <i>Chen v. Interinsurance Exchange of the Automobile Club</i> (2008) 164 Cal.App.4th 117, 121.) Based on a reading of Defendants' § 998 offer as a whole, the Court finds the conditional general release to be limited to the claims in this action and does not present a valuation problem or otherwise renders the offer fatality uncertain. (See <i>Toste v. Calportland Const.</i> (2016) 245 Cal.App.4th 362, 374; see also Sahagun Decl., Ex. B.)</p> <p><u>Deposition costs (Item 4).</u> These costs are expressly allowable by statute and Defendants have shown they were reasonably incurred. (See Code of Civ. Proc. § 1033.5, subd. (a)(3); see also Sahagun Decl. ¶¶ 41-50.) Plaintiff failed to meet her burden showing the costs were unreasonable or unnecessary.</p> <p><u>Witness fees, court reporter fees, models, enlargements and photocopies (Items 8, 9, 12):</u> Defendants agree to withdraw \$23,013.79 in preoffer and transcript-related expenses. The remaining costs are allowable by statute and</p> |

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|     |                                                  | <p>Defendants have shown they were reasonably incurred. (See Code of Civ. Proc. § 1033.5, subd. (a)(11),(13), § 998, subd. (c)(1); see also Sahagun Decl. ¶¶ 62-145.) Plaintiff failed to meet her burden showing the costs were unreasonable or unnecessary.</p> <p>Defendants shall give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 306 | <i>Sandlin vs. Prime Healthcare Anaheim, LLC</i> | <p>Before the Court is an unopposed motion to compel arbitration filed by defendant Prime Healthcare Anaheim LLC (Defendant) as to the Complaint filed by plaintiff Charles Sandlin.</p> <p>Defendant's motion to compel arbitration is GRANTED. (See Code Civ. Proc., § 1281.2.) Defendant met its burden to show a written arbitration agreement exists that covers plaintiff's claims. (See Code Civ. Proc., § 1281.2; <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413; see also Robinson Decl., ¶4 &amp; Exhs. A, B.) Moreover, in response to the motion Plaintiff states that he "consents to an Order compelling the parties to arbitration and stay this civil action pending the outcome of that arbitration." (ROA 30.)</p> <p>Plaintiff Charles Sandlin shall submit his claims against Defendant to binding arbitration pursuant to their agreement as set forth in Exhibits A &amp; B to the declaration of Vanessa Labasan-Robinson.</p> <p>This action is stayed pending completion of arbitration. (See Code Civ. Proc., § 1281.4.)</p> <p>The 8/10/26 CMC is vacated. The court sets a status conference re binding arbitration for February 8, 2027 at 8:45 a.m. in Dept. C24.</p> <p>Defendant shall give notice.</p> |

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| 307 | <i>Grange vs. First American Title Company</i>            | <p>Defendants Higgs Fletcher &amp; Mack and Michael P. Burns' unopposed demurrer to the second amended complaint (SAC) of plaintiffs Jeff T. Grange and Dawn Downs is SUSTAINED in its entirety. The request for order to show cause, motion to strike and motion for protective order are MOOT.</p> <p><u>Intentional interference with prospective economic advantage (2nd and 6th causes of action):</u> The SAC fails to state facts sufficient to constitute this cause of action, including the existence of an economic relationship with a third party and independently wrongful acts. (See <i>Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc.</i> (2017) 2 Cal.5th 505, 512 [elements].)</p> <p><u>Intentional interference with contractual relations (3rd and 7th causes of action):</u> The SAC fails to state facts sufficient to constitute this cause of action, including a valid contract between Plaintiffs and a third party. (See <i>Quelimane Co. v. Stewart Title Guaranty Co.</i> (1998) 19 Cal.4th 26, 55 [elements]; <i>Mintz v. Blue Cross of Calif.</i> (2009) 172 Cal.App.4th 1594, 1607 [the agent of a contracting party cannot be held personally liable for interfering with its principal's contract].)</p> <p><u>Declaratory relief (5th cause of action):</u> This claim is derivative of the other claims and fails for the same reasons.</p> <p>The 8/10/26 CMC remains on calendar.</p> <p>Defendants shall give notice.</p> |
| 308 | <i>CROSSROADS EQUIPMENT LEASE AND FINANCE, LLC vs. DW</i> | <p>The unopposed applications for writ of possession filed by plaintiff Crossroads Equipment Lease and Finance, LLC (Plaintiff) against defendants DW Freight Services and Mo Li (collectively, Defendants) are <b>GRANTED</b>.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |

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|     | <i>FREIGHT SERVICES</i>                        | <p>Plaintiff applies for writs of possession under Code of Civil Procedure section 512.010 as to the following property: 2019 Freightliner 126SLP, VIN 3AKJHHDR1KSKJ0741, and 2019 Freightliner 126SLP, VIN 3AKJHHDR5KSKJ0595 (together, Subject Property).</p> <p>The applications were duly served on Defendants. (See ROA 24, 26). Plaintiff has satisfied the requirements of Code of Civil Procedure section 512.010 and has established the probable validity of its claim to possession of the Subject Property. (Code Civ. Proc., §§ 512.010, 512.060(a); Broadie Decl., ¶¶ 1-22; Exs. 1-5.)</p> <p>As Plaintiff has presented evidence to show Defendants have no equity in the Subject Property, no bond or undertaking is required. (Broadie Decl., ¶¶ 23-24, Ex. 6; Code Civ. Proc., § 515.010(b).)</p> <p>Plaintiff's request for an order, pursuant to Code of Civil Procedure section 512.070, directing Defendants to transfer possession of the Subject Property to Plaintiff is <b>GRANTED</b>.</p> <p>Counsel for Plaintiff shall submit a proposed order and shall give notice of this ruling.</p> |
| 309 | <i>Shift4 Payments, LLC vs. S5 Equity, LLC</i> | <p>The application of attorney Mauro G. Tucci to appear pro hac vice as counsel for Shift4 Payments, LLC is <b>DENIED</b>, without prejudice.</p> <p>Tucci's application fails to comply with California Rule of Court 9.40. Application not served on State Bar at its San Francisco office. (Rule 9.40(c)(1).) Tucci does not state whether or not he is "Regularly employed in the State of California" or "Regularly engaged in substantial business, professional, or other activities in the State of California." (Rule 9.40(a)(2)&amp;(3).) Also, the title of the case in which</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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|  | <p>Tucci was previously admitted pro hac vice is partially omitted. (Rule 9.40(d)(5).)</p> <p>Accordingly, the application is DENIED, without prejudice.</p> <p>The 8/10/26 CMC remains on calendar.</p> <p>Plaintiff shall give notice.</p> |
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